

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER

0044038283

PAGE 1 OF 35

2. CONTRACT NUMBER

3. AWARD/EFFECTIVE DATE

4. ORDER NUMBER

5. SOLICITATION NUMBER
140L3726Q0050

6. SOLICITATION ISSUE DATE

05/06/2026

7. FOR SOLICITATION INFORMATION CALL:

a. NAME

Daniel Rosales

b. TELEPHONE NUMBER (No collect calls)

8. OFFER DUE DATE/ LOCAL TIME
05/26/2026 0900 MD

9. ISSUED BY

CODE

LFA

BLM FA-NTL INTRAGCY FIRE CTR(FA250)
3833 S. DEVELOPMENT AVE.
BOISE ID 83705

10. THIS ACQUISITION IS

☐ UNRESTRICTED OR

☒ SET ASIDE: **100.00%** FOR:

☒ SMALL BUSINESS

☐ WOMEN-OWNED SMALL BUSINESS (WOSB)

NORTH AMERICAN
INDUSTRY CLASSIFICATION
STANDARD (NAICS):

☐ HUBZONE SMALL BUSINESS

☐ ECONOMICALLY DISADVANTAGED

115310

☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)

☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB)

SIZE STANDARD:

\$34

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED

☒ SEE SCHEDULE

12. DISCOUNT TERMS

13a. THIS CONTRACT IS A
☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)

13b. RATING

14. METHOD OF SOLICITATION REQUEST
☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO

CODE

0011276588

See Schedule

16. ADMINISTERED BY

CODE

LFA

See Schedule

17a. CONTRACTOR/ OFFEROR

CODE

FACILITY CODE

18a. PAYMENT WILL BE MADE BY

CODE

TELEPHONE NUMBER

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NO.

20. SCHEDULE OF SUPPLIES/SERVICES

21. QUANTITY

22. UNIT

23. UNIT PRICE

24. AMOUNT

ADMINISTERED BY:
BLM FA NTL INTRAGCY FIRE (FA250)
3833 S. DEVELOPMENT AVE.
BOISE ID 83705 US
DELIVER TO:
BLM-OR NORTHWEST OR (DM STAFF)
Continued...

(Use Reverse and/or Attach Additional Sheets as Necessary)

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT (For Government Use Only)

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. ADDENDA FAR 52.212-3 AND 52.212-5 ARE ATTACHED.

☒ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA

☐ ARE ☐ ARE NOT ATTACHED

☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED: _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)

30b. NAME AND TITLE OF SIGNER (Type or print)

30c. DATE SIGNED

31b. NAME OF CONTRACTING OFFICER (Type or print)

31c. DATE SIGNED

Daniel Rosales

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
00010	1717 FABRY RD SE SALEM OR 97306 US Delivery: 12/31/2028 Period of Performance: 06/04/2026 to 12/31/2028 Prescribed Fire Support - Engines Product/Service Code: F003 Product/Service Description: NATURAL RESOURCES/CONSERVATION- FOREST-RANGE FIRE SUPPRESSION/PRESUPPRESSION				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED☐ INSPECTED☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42a. RECEIVED BY (Print)

42b. RECEIVED AT (Location)

42c. DATE RECEIVED (MM/DD/YYYY)

42d. TOTAL CONTAINERS

PRESCRIBED BURNS ENGINES, NORTHWEST OREGON DISTRICT

This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in Subpart 12.6, as supplemented with additional information included in this notice. This announcement and attachments constitute the only solicitation; quotes are being requested, and a written solicitation will not be issued. Consider this solicitation (140L3726Q0050) as a Request for Quotes (RFQ). This solicitation documents incorporate provisions and clauses in effect through Federal acquisition Circular 2025-007. This solicitation is set-aside for small business. NAICS 115310 – Support Activities for Forestry – Fuels Management Services. The small business size standard is \$34.0 million. Product Service Code F003 – Natural Resources / Conservation – Forest-Range Fire Suppression/Resuppression. The resulting purchase order will be a firm-fixed price type purchase order. (SEE ATTACHMENT 140L3726Q0050 – RFQ PACKAGE FOR COMPLETE PERFORMANCE WORK STATEMENT, MAPS, WAGE DETERMINATIONS, AND CLAUSES / PROVISIONS.)

Department of Interior, Bureau of Land Management, Northwest Oregon District has a requirement to perform prescribed burns.

Description	Quantity	Unit of Issue	Unit Price	Total
CLIN 0010 Prescribed Burns Engine Module	30	Day	\$	\$

SITE VISIT: No scheduled site visit. However, Contact COR Spencer Ware @, saware@blm.gov if you should have questions pertaining to site visit. (Technical questions solicitation questions, submit through email to the Contracting Officer).

In accordance with the procedures in FAR Part 12, RFQ 140L3726Q0050 is available for viewing through electronic commerce via Bureau of Land Management's website at <https://sam.gov>.

The Government will award a contract and/or purchase order resulting from this solicitation to the responsible vendor whose quote conforms to the solicitation and in accordance with the technical evaluation factors.

Questions are due Tuesday, May 12, 2026, 9:00 a.m. Mountain Daylight Time. Quotes are due Tuesday, May 26, 2026, 9:00 a.m. Mountain Daylight Time. Contractors submit quotes by email to daniel_rosales@ios.doi.gov.

Note: Any contractor submitting an acceptable quote or awarded a government contract must be registered and active in the System for Award Management (SAM). Contractors must register at www.sam.gov.

- Contractors must submit their Unique Entity ID (UEI) and CAGE code with their quote.
- Sign SF-1449 and any amendments that may be posted to www.sam.gov.

UEI _____

CAGE _____

For further information about this requirement, offerors should contact daniel_rosales@ios.doi.gov.

The provisions and clauses attached apply to this solicitation.

Attachments:

1. PWS, 05/05/2026, 18 Pages
2. Map, 05/05/2026, 1 Page
3. Wage Determination 1977-0079 Rev 78, 04/11/2026, 4 Pages
4. Provisions and Clauses, 05/05/2026, 8 Pages

PERFORMANCE WORK STATEMENT (PWS)

R6 Prescribed Burn Support

R6 Region-wide, Oregon and Washington

05/05/2026

Project Title: NOD Prescribed Fire Support

Project Locations: Northwest Oregon District (Cascades FO, Marys Peak FO, Siuslaw FO, Tillamook FO, Upper Willamette FO)

Period of Performance: Award-12/31/2028...resource must be readily available for a 24 hour notification between April 1st to June 30th and September 15th to December 1st.

Part 1

Scope

Services shall be non-personal. The Government shall neither supervise contractor employees nor control the method by which the contractor performs the required tasks. Under no circumstances shall the Government assign tasks to, or prepare work schedules for, individual contractor employees.

- 1.1.2 The contractor shall furnish labor, supervision, transportation, operating supplies (except those specified as Government furnished) to perform work necessary to conduct fire line construction and/or maintenance (mechanical and/or hand line), brushing/lopping/scattering/pruning for vegetation modification in preparation for prescribed burning, fuels pullback, **pile covering**, ignition, holding/suppression, snag felling, mop-up and patrol, and fire line and road access repair. The COR will describe the specific objectives of any operational duty, normally during a pre-operational briefing. The Contractor's employees must meet the standard classifications of positions on prescribed burn projects as defined in the National Wildfire Coordinating Group National Incident Management System: Wildland Fire Qualifications System Guide (PMS 310-1, NFES 1414, October 2018, or latest version) which is available under "Publications" at the following website: <https://www.nwcfg.gov>.
- 1.1.3 Escape Burn Guidelines and Procedure - If, in the judgment of the COR, a slopover that occurs during ignition or mop-up cannot be contained with the personnel and equipment identified in the Contingency Plan, Element 17 of the Prescribed Fire Plan, the Burn Boss will follow the procedures outlined in the Wildfire Declaration, Element 18 of the Prescribed Fire Plan. Under this condition, the Contractor shall take immediate action to control, suppress, and mop up the escaped fire. The Contractor and crew(s) shall work under the direct supervision of the Government and continue working until released by the Government. The COR will notify the responsible dispatch center.
- 1.2 **Background:** Prescribed burning has been shown to reduce the risk of wildland fire and the severity of fires that do occur through the reduction in available fuel loading and changes in fuel composition and structure across the landscape. Project areas are reforestation areas, natural and managed stands of timber woodlands, shrub fields, or grass areas of all ages, size, and species. Fuels will consist of harvest activity slash and natural fuels, live fuels, jackpot fuels, piled fuels and slashed shrubs and trees. Fuel loadings range from less than ½ ton per acre to as high as 100 tons or more per acre.
- 1.3 **Objectives:** It is the objective of this contract to provide services to the Bureau of Land Management (BLM) and the US Wildland Fire Service (USWFS) to assist with its prescribed burning program on identified units to reduce fuel loading and/or change the composition and structure of fuels to optimize the treatment of those fuels to the most effective burning period.
- 1.4 **Location:** Services will be performed within the boundaries of Northwest Oregon District, BLM.
 - 1.4.1 Boundaries of project areas are generally identifiable as logged units, by changes in vegetation structure or type, roads, or flagging. The boundaries can be adjacent timber stands, recent harvest units, property line boundaries, or other natural or manmade features that clearly define the boundary as noted on the project area maps.

- 1.4.2 Access is by all-weather and seasonal roads. Seasonal roads may be impassable for several days after heavy rains, or snow-blocked roads during the winter months.
- 1.4.3 Contractors accessing project areas via private land shall obtain permission to travel over private lands unless the Government has already obtained access from the private land owner. Otherwise, the Contractor shall provide the Government a written statement or written documentation of verbal approval given by a named person on a stated date and time that the contractor has been granted permission to travel over private lands.
- 1.4.4 Access to individual project areas may be through locked gates. Access behind locked gates shall be for the purpose of conducting work under this contract only. Locked gates shall remain locked at all times other than when the Contractor is passing through them unless other arrangements are approved by the COR. A key for access to locked gates may be supplied to the Contractor at issuance of a task order (BPA Call) award. Supplying the Contractor a key for access is at the discretion of the COR. The key shall be returned to the COR in a usable condition before final payment is made. When two or more locks are present on a gate, the Contractor shall secure the lock so that access is not restricted nor prevent the unlocking of other locks on the gate.
- 1.4.5 Unique features of Project Areas - Standing timber, wildlife trees and snags may be present within the project sites. Research plots or special protection buffers may be located within the project boundaries. These may have seasonal restrictions on operations and cannot be disturbed during project treatments.
- 1.5 Period of Performance (PoP):** The period of performance for each task order will be identified in that order's schedule. The period during which work will be performed may be dependent on burn windows, and the Government shall provide the expected burn window's for each order when issued. Burn windows shall always be within the order's period of performance.
- 1.5.1 The COR for each order shall notify the contractor at least 6 hours before the start of a changed, cancelled, or postponed burn window. If the Government changes a burn window and provides a notice of the change to the contractor at least 6 hours in advance, then the Contractor shall provide services under the new burn window.
- 1.5.2 The Contracting Officer, COR, or Contractor may stop performance due to the following:
- a. Contractor has not maintained a safe work environment for their employees in accordance with the law. Work will not resume until the issue has been resolved in accordance with the contract's terms and conditions. The Contracting Officer shall not make an equitable adjustment to the period of performance, delivery schedule, or the contract price.
 - b. Contractor has damaged Government property, defaced the landscape, or caused pollution. Work will not resume until the Contractor has corrected all damages at no cost to the Government, and all issues have been resolved in accordance with the contract's terms and conditions. The Contracting Officer shall not make an equitable adjustment to the period of performance, delivery schedule, or the contract price.
 - c. The Government discovers threatened, endangered, and sensitive species present in or adjacent to the project area. If work has not resumed within three days of stoppage, the Government and Contractor will negotiate an equitable adjustment to the period of performance and/or delivery schedule.
 - d. The discovery of historical and archeological resources. If work has not resumed within three days of stoppage, the Government and Contractor will negotiate an equitable adjustment to the period of performance and/or delivery schedule.
 - e. Environmental hazard threatening the project area, such as a forest fire. If work has not resumed within three days of stoppage, the Government and Contractor will negotiate an equitable adjustment to the period of performance and/or delivery schedule.
- 1.6 Post Award Conference:** The Contracting Officer shall schedule a post award conference with the Contractor, COR, and any other parties involved with the contract. The meeting will take place before the start of the period of performance and will be held through teleconference or Microsoft Teams. The COR may choose to schedule a separate, project specific, pre-work meeting in the form of a briefing to gain project specific objectives and/or review the site before work begins.

1.7 Key Personnel: The Government considers the following personnel key for successful performance: Firing Boss, Crew Bosses, Engine Bosses/Operators, Water Tender Operators, Heavy Equipment Operators, and Skidgen Operators. The minimum qualifications for all key personnel are listed below:

- a. The Contractor's key personnel and all employees must meet the standard classifications of positions on fire projects as defined in the National Wildfire Coordinating Group National Incident Management System: Wildland Fire Qualifications System Guide (PMS 310-1, NFES 1414, October 2018, or latest version) which is available under "Publications" at the following website: <https://www.nwcg.gov>.
- b. English Speaking Requirement – Prompt and efficient communications between the Contractor's key personnel and the Government's prescribed fire personnel is mandatory for safe and effective performance. At a minimum, all the assigned Contractor's Burn Boss (RXB2 and RXB3), Firing Boss (FIRB), Crew Boss (CRWB) and Squad Boss (FFT1), Engine Boss (ENGB), Tender Operator(s), Skidgen Operator(s), and Heavy Equipment Operator(s) shall be proficient in the English language. The RXB2, RXB3, FIRB, CRWB and ENGB must be proficient in all languages used by their crew members. The Squad Bosses (FFT1) must be able to communicate proficiently in any language used by their squad members. The RXB2, RXB3, FIRB, CRWB, all Squad Bosses (FFT1), and ENGB must also be able to read the Prescribed Fire Burn Plan and communicate the information contained therein to all crewmembers. All radio communication on Government-assigned frequencies shall be in English.

Part 2

Definitions

- 2.1 Brushing/lopping/scattering** - Removing live or dead vegetation by slashing and pruning for the purpose of hazardous fuel reduction and safety when preparing for or implementing a prescribed burn. Severed vegetation may be scattered or piled. Lopping is the cutting of tops, branches and tree boles of vegetative material on the ground so that the material will lie close to the ground. Scattering is the spreading of cut or lopped material so that is evenly distributed across the ground.
- 2.2 Complexity of Prescribed Burn Projects** - The Government will evaluate and rate prescribed burn complexity based on the Prescribed Fire Complexity Rating System Guide (Attachment 1). The Guide considers three fire complexity factors: risk, potential consequences, and technical difficulty. Fourteen elements are assigned a Low, Moderate, or High complexity rating for each factor and a summary complexity is determined. Complexity and Level of Difficulty are not synonymous. Burn complexity is one of several factors that influence Levels of Difficulty. A highly complex burn may not be a highly rated level of difficulty.
- 2.3 Contingency Plan** - Identification of actions to be taken if the fire exceeds prescription parameters and/or escapes perimeter lines and cannot be returned to prescription or contained with the resources identified in the Prescribed Fire Plan.
- 2.4 Contracting Officer (CO)** - A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the government. The only individual who can legally bind the government.
- 2.5 Contracting Officer's Representative (COR)** - An employee of the U.S. Government appointed by the contracting officer to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.
- 2.6 Control Line (fire line)** - An inclusive term for all constructed or natural barriers and treated fire edges used to control a fire.
- 2.7 Crew - Type 2 10-person** - A firefighting unit consisting of 7 Firefighter Type 2 (FFT2), 2 Advanced Firefighter/Squad Bosses (FFT1), and 1 Crew Boss, Single Resource (CRWB), of whom 40% or more have at least **one season** of firefighting experience.

- 2.8 Heavy Equipment Operator** - An experienced and competent heavy equipment operator. The operator must have experience on the equipment type and model provided by the Contractor.
- 2.9 Engine Boss - (ENGB)** Each Engine Boss shall have met the training and experience requirements for Engine Boss and the performance tasks in PMS 311-14 (PTB) for ENGB. Operator will be properly licensed and endorsed for the equipment type and model they are operating.
- 2.10 Fire Crew Member (FFT2)** - All other Crew Members shall have met the training requirements for Firefighter Type 2.
- 2.11 Firing Boss (FIRB)** - FIRB oversees all aspects of ignition and provides direction to lighting crew during ignition of the unit. Standard classification of position on fire projects as defined in the Wildland Fire Qualification System Guide published by the National Wildfire Coordinating Group, Publication Number PMS 310-1.
- 2.12 Fire Line** - All constructed or natural barriers used to control a fire or stop fire spread to undesired areas.
- 2.13 Fireline Construction – Hand Line** - Fire lines shall be cleared of all brush and debris for a minimum width of 8 ft. with the outer edge of the clearing inside the burn unit boundary. Debris for the clearing shall be scattered inside the burn unit to reduce the creation of a windrow of slash along the fire line. A continuous fire line, minimum of 18 inches wide (or as determined during project) shall be dug to mineral soil within the outer portion of the clearing. Any berms created during fire line construction shall be on the outside edge of the 18 inch line, away from the interior of the burn unit.
- 2.14 Fireline Construction – Machine Line** - Fire lines shall be cleared of all brush and debris for a minimum width of 10 feet with the outer edge of the clearing inside the burn unit boundary. Debris from the clearing shall be scattered inside the burn unit to reduce the creation of a windrow of slash along the fire line. A continuous fire line approximately 6 feet wide (or as determined during project) for mechanical, shall be dug to mineral soil within the out portion of the clearing. Any berms created during fire line construction shall be on the outside edge of the fire line (mineral soil fire line), away from the interior of the burn unit.
- 2.15 Fuels Modification** - Treatment of vegetative fuels to reduce adverse fire effects, limit rate of spread, and establish defensible areas by slashing shrubs, small vegetation and the pruning of live vegetation. Treated areas are usually along ridge lines, between separate stand and vegetative types, or adjacent to private property.
- 2.16 Fuels Pullback** - Removing surface fuels from the base of standing trees and snags for a designated distance and removal of ladder fuels by pruning for a designated height.
- 2.17 Hazard Reduction** - The planned treatment or manipulation of naturally growing vegetation or any other flammable material for the purpose of reducing rate of spread and output of heat energy from any wildfire occurring in the area treated.
- 2.18 Holding** - Monitoring the burning area closest to the fire line to detect and extinguish fire, hot embers or smokes that are a threat of fire escaping fire line. Water, water-foam mixture and dirt may be used to extinguish burning material. Holding activities occur near the fire line, or in the event of dense smoke and reduced visibility, holding may occur in an area of improved visibility a short distance outside of the fire line. Holding distance from the fire line will be the expected spotting distance as described in the pre-operational briefing.
- 2.19 Holding Boss (Holding Specialist)** - The individual who provides direction to those personnel responsible for holding the fire line during ignition and burn out period(s). Required individual qualifications are identified in the Prescribed Fire Plan and are based on the complexity of the prescribed burn.
- 2.20 Ignition** - The act of starting the prescribed fire. Ignition devices that may be used are drip torches and fusees. Contractor will ensure any hand crew members assigned to ignition duties are trained and qualified to operate ignition devices safely and competently.
- 2.21 Jackpot Burn** - Burning concentrations of fuels (jackpots) at a time or under conditions that won't allow fire to spread from the target area.
- 2.22 Ladder Fuels** - Fuels that provide vertical continuity between the ground and the tree crowns, thus creating a pathway for surface fire to move into the overstory tree crowns.

- 2.23 Mop-up** - The act of extinguishing the prescribed fire after the initial burn period. Water, water-foam mixture and dirt may be used to extinguish burning material or burning material may be removed from near fire lines and located more interior of the burn unit, logs may be trenched to prevent rolling, and burning or burnt material may be carefully examined and monitored to ensure it is extinguished. The minimum performance level for mop-up is 1/3 acre per person per 8-hour day.
- 2.24 Patrol** - Similar to holding activities except that patrolling begins after the ignition has been completed. Patrolling may occur immediately after ignition, during subsequent burn periods or after ignitions have been completed.
- 2.25 Prescribed (RX) Burning** - Controlled application of fire to wildland fuels in either their natural or modified state, under specified environmental conditions which allow the fire to be confined to a predetermined area and at the same time to produce the intensity of heat and rate of spread required to attain planned resource management and prescribed burn objectives. Types of prescribed burning include pile burning, jackpot burning, underburning or broadcast burning.
- 2.26 Prescribed Fire Burn Boss (RXB2 or RXB3)** - Is responsible for the organizing and management of all personnel and equipment on the burn project and for meeting prescribed burn objectives. Standard classifications of positions on fire projects are defined in the National Wildfire Coordinating Group Wildland Fire Qualifications Subsystem Guide (PMS 310-1, NFES 1414). Available under "Qualifications" at the following website: <http://www.nwcg.gov>.
- 2.27 Prescribed Fire Plan** - Also called the Burn Plan. This is a written plan which includes burn area description, resource and prescribed fire objectives, fuels description, weather and fuel parameters, acceptable fire behavior, smoke management and other considerations, ignition schedule, ignition and holding plan, safety considerations, workforce and equipment needs, unit maps, escape contingency plan, crew briefing and go/no go checklist, and the complexity rating of the burn project. The plan shall be reviewed and approved prior to implementation.
- 2.28 Project Area** - The area being treated as identified in the task order.
- 2.29 Pruning** - Removal of live and dead limbs from standing trees for a specified height for the purpose of removing ladder fuels. Pruned material is usually pulled back from the tree bole for a specified distance and scattered within the burn unit.
- 2.30 Quality Assurance** - The government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.
- 2.31 Quality Assurance Surveillance Plan (QASP)** - An organized written document specifying the Government's surveillance methodology to be used for surveillance of contractor performance.
- 2.32 Quality Control** - All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.
- 2.33 Single Resource Crew Boss (CRWB)** - Responsible for supervising and directing a fire suppression hand crew. The Crew Boss shall have met the training and experience requirements for Single Resource - Crew Boss and the performance tasks in PMS 311-13 (PTB) for CRWB.
- 2.34 Skidgen Operator – (EQOP)** - An experienced and competent skidgen operator. The skidgen operator must have experience on the equipment type and model provided by the Contractor.
- 2.35 Slash** - Any cut vegetation or existing natural (dead and down) woody debris.
- 2.36 Slopover** - Fire that crosses an established control line but can be contained by personnel and equipment identified in the Prescribed Fire Plan (Contingency Plan).
- 2.37 Spot Fire** - Any fire located outside of the prescribed burn unit caused by airborne fire brands (embers) or radiated heat emitted from the prescribed burn.
- 2.38 Squad Boss (FFT1)** - Responsible for supervising and directing up to five fire crew members (FFT2). Each Squad Boss shall have met the training and experience requirements for Advanced Firefighter/Squad Boss and the performance tasks in PMS 311-14 (PTB) for FFT1.

- 2.39 Tender Operator (WTOP)** - An experienced and competent tender operator. The tender operator must have experience on the equipment type and model provided by the contractor. Operator will be properly licensed and endorsed for the equipment type and model they are operating.
- 2.40 Water Tender** - Self-propelled unit equipped with suitable tank, pump, pump power unit, valves, hose, suction line, and fittings for a water delivery system.
- 2.41 Water Delivery System** - A system to deliver water to the fire line (i.e. Fold-A-Tank or equivalent) of a minimum of 1,000 gallon capacity or greater with associated pump(s), hoses and fittings to deliver water to specified locations.
- 2.42 Wildland Fire Incident Qualification Card (WFIQC)** - Each CRWB/FIRB, FFT2, FFT1, WTOP and EQOP shall possess a valid WFIQC (also known as a **Red Card**) or similar official agency document issued by any of the NWCG member agencies in the western states (Oregon, Washington, California, Idaho, Nevada, Alaska, Arizona, Utah, and Montana) and have acceptable support documentation that the individual has met the training and experience requirements for such position(s).

The Government reserves the right to reject any CRWB/FIRB, FFT1, FFT2, WTOP or EQOP who is not in full compliance with the specifications listed above. In addition, failure of any personnel to demonstrate an ability to perform the tasks listed in the Position Task Book (PTB) for that individual's position shall be cause for immediate release of that individual from the prescribed fire operation.

- 2.43 Wildland Fire Safety Training Annual Refresher** - In addition to the training requirements for the CRWB, ENGB, FFT1, and FFT2 positions described above, Tender and Skidgen Operator, the Contractor shall ensure that all of its returning certified employees complete RT-130 Wildland Fire Safety Training Annual Refresher prior to a prescribed fire assignment. The Contractor shall place in the employee's training file a course roster and training certificate, signed and dated after January 1 of the current calendar year, by the instructor that confirms firefighter attendance and completion of the required annual refresher training.

Wildland Fire Safety Training Annual Refresher must be at least six 6 hours in length and must include the following core topics:

Entrapment Avoidance – Use training and reference materials to study the risk management process (as identified in the Incident Response Pocket Guide) and rules of engagement (e.g., LCES, 10, 18, Look Up, Look Down, Look Around). Current Issues – Review and discuss identified “hot topics” and “national emphasis topics” including the “Do the Right Thing” video. Review forecasts and assessments for the upcoming fire season and discuss implications for firefighter safety. Fire Shelter – review and discuss last resort survival. Conduct “hands-on” fire shelter inspections. Practice shelter deployments in applicable crew/module configurations. No “live fire” exercises for the purpose of fire shelter deployment training will be conducted. Other Hazards and Safety Issues – Choose additional hazard and safety subjects, which could include SAFENET, current safety alerts, site/unit specific safety issues and hazards.

- 2.44 Wildlife Trees** - Standing dead or live trees left for nesting, feeding, perching and shelter for birds and mammals. Trees may be marked with paint and/or designated with a tag stating it is a wildlife tree or as identified by the COR.

Part 3

Government-Furnished Documents, Property, Supplies, & Services

- 3.1 Government-Furnished Documents:** The Government shall provide the following documents for each task order.
- Applicable prescribed burn unit maps with previously identified boundaries, applicable road numbers or names, critical holding points and locations specifying where work is to be completed, such as, fire line construction that will be provided to Contractor key personnel.
 - A copy of the completed and signed prescribed fire burn plan, if contractor will be responsible for full prescribed burn planning and implementation.

- 3.2 Government-Furnished Property:** The Contractor shall be liable for all loss or damage of Government-furnished property until return and COR acceptance of property. The Government will provide the following property to the Contractor for use in the performance of this contract.
- a. Keys for locked Government gates.
- 3.3 Government-Furnished Supplies:** The Government shall provide the following supplies for each task order.
- a. For prescribed burn support projects, the government will furnish the contractor with burn fuel for refilling drip torches used for ignition devices. The contractor is expected to arrive with full drip torches and the Government will provide fuel to refill drip torches when used.
 - b. Plastic sheeting for pile covering.
- 3.4 Government-Furnished Services:** The Government shall provide the following services for each task order.
- a. The Government shall obtain prescribed burn clearance from the appropriate state air quality regulatory agency.
- 3.5 Government-Furnished Campsites:** The Forest Service (FS) and BLM may have various camping opportunities available. The Contractor must notify the COR if camping opportunities are wanted. The COR will check to see if camping opportunities are available. If available, the COR will provide the contractor with the local FS or BLM unit for camping requirements, camping permits, and local fire restriction policies. If camps will be used to house workers subject to MSPA, they are also subject to the temporary labor camp standards at 29 CFR 1910.142. The Government reserves the right to terminate a camping permit at any time.
- a. Every structure used as shelter must provide protection from the elements. Where adequate heat is not provided, make other arrangements to protect workers from the cold. Cut firewood only after a Firewood Permit is obtained, if required.
 - b. The campsite must not encroach beyond the boundaries designated by the Government. The campsite location must minimize impacts on streams, lakes, and other bodies of water. Camping may not be permitted within developed recreational sites or along primary recreational roads.
 - c. The campsite must have a clean appearance at all times. Upon abandonment of any campsite, or termination, revocation, or cancellation of camping privileges, the contractor shall remove, within 10 calendar days, all structures and improvements except those owned by the United States, and shall restore the site, unless otherwise agreed upon in writing or in the camping permit. Structures or improvements the contractor fails to remove within the 10-calendar day period becomes the property of the United States, however, the contractor remains liable for the cost of the removal and restoration of the site.
 - d. Unless otherwise designated by the CO, the use of the area is not exclusive and may be granted to other permittees, contractors, or recreating public. Disorderly conduct is not permitted.
 - e. Damaging or removing any natural feature or other property of the Government is prohibited.
 - f. Servicing of equipment in the campsite is not permissible unless the campsite is within the project area.
 - g. The Contractor will provide sanitary facilities for storing food. Provide ice chests or coolers, with ice supply made from potable water, and replenish as necessary. Provide sufficient storage for perishable food items. It may be required for food to be stored in secure boxes (i.e. bear boxes) and kept in vehicles to prevent animals from accessing food in some locations.
 - h. The Contractor will provide an adequate and convenient potable water supply in each camp for drinking and cooking purposes.
 - i. The Contractor will provide adequate toilet facilities and toilet paper for the capacity of the camp. Service and maintain facilities in a sanitary condition.

- j. The Contractor shall collect, store, and dispose of garbage daily in a manner to discourage animal access, minimize attraction of flies, and prevent scattering by wind.
- k. The Contractor shall maintain basic first aid supplies available, which must be under the charge of a person trained to administer first aid.
- l. The Contractor shall wash laundry in such a way that washing and rinsing will not pollute lakes, streams, or other flowing water.
- m. The Contractor shall dispose wastewater away from living and eating areas and in such a way that minimizes pollution to lakes, streams, and other flowing water.
- n. The Contractor shall take all reasonable precautions to prevent and suppress forest fires. Do not dispose of material by burning in open fires during the closed season established by law or regulation without the written permission from the Forest Service.
- o. If authorized to have an open fire, the Contractor shall comply with the following fire regulations:
 - A shovel, axe or Pulaski, a 10-quart pail, which is full of water for immediate use, and a fire extinguisher with an Underwriters Laboratory (UL) rating of at least 1:A 10:BC is required. The Contractor will follow campfire restriction guidelines for the location of camping.
 - 1. All fire rings or outside fireplaces must be approved by the Forest Service representative. The area must be cleared down to mineral soil for a distance of one foot outside of the ring or fireplace, and it must not have any overhanging material. Fire rings must be dismantled and material disposed prior to leaving the site.
 - 2. All generators and other internal combustion engines must be equipped with Forest Service approved spark arrestors and/or factory designed muffler and exhaust system in good working order. They will be located in a cleared area with the same requirements as in described in the previous paragraph.
 - 3. All fuel must be stored in UL approved flammable storage containers and be located at least 50 feet from any open flame or other source of ignition. When fuel containers are stored on the ground, they must be on fuel absorbent pads.

Part 4

General Requirements for Work on the Forest

- 4.1 Contracting Officer's Representative (COR):** The COR will be identified by separate letter. The COR monitors all technical aspects of the task order and assists in task order administration. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the task order, perform inspections necessary in connection with task order performance, maintain written and oral communications with the Contractor concerning technical aspects of the task order, issue written interpretations of technical requirements (including Government drawings, designs, and specifications), monitor Contractor's performance, notifies both the Contracting Officer and Contractor of any deficiencies, coordinate availability of government furnished property, and provide site entry of Contractor personnel. A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR. The COR is not authorized to change any of the terms and conditions of the resulting contract.
- 4.2 Quality Assurance:** The government shall evaluate the contractor's performance under each task order in accordance with a quality assurance surveillance plan. This plan is primarily focused on what the government must do to ensure the contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rates.
- 4.3 Business Relations:** The contractor shall successfully integrate and coordinate all activity needed to execute the requirement. The contractor shall manage the timeliness, completeness, and quality of problem identification. The contractor shall provide

corrective action plans, proposal submittals, timely identification of issues, and effective management of subcontractors. The contractor shall seek to ensure customer satisfaction and professional and ethical behavior of all contractor personnel.

- 4.4 Security Requirements:** The contractor may leave its equipment and Government-furnished property at the work site. The contractor shall be responsible for the contractor's equipment and Government-furnished property if it should be lost, stolen or damaged, unless the Government orders the material to be left unattended by the contractor, such as when the water delivery system is to be provided without crew support.
- 4.5 Safety:** The Contractor shall develop a general safety plan that complies with or exceeds OSHA standards. It shall describe safety procedures for crew safety. Emergency numbers and communications shall be described in the plan. The plan shall be provided to the COR before any work begins. This plan shall be presented and reviewed by all crew members before work begins and be available to all crews at all sites during work periods. The plan shall also be available to the Government for inspection at any time.
- 4.5.1 In addition to the general Safety Plan, the Contractor shall have a site-specific Communication/Safety/Emergency Plan. The site-specific plan shall be a document giving location of operations, name and phone number of individuals to call in case of an emergency, phone number of nearest fire department, travel route(s) to project location(s), nearest hospital, and fire rescue and ambulance (EMS). If gate keys are needed, this document shall also include where they can be obtained. This plan shall be presented and reviewed by all crew members and be available to all crews at all sites during work periods. The plan shall also be available to the Government for inspection at any time.
- 4.5.2 Potential Safety Hazards: Data and information furnished or referred to below is for the Contractor's information. The Government shall not be responsible for any interpretation of or conclusion drawn from the data or information by the Contractor. This list shall not be deemed to be all inclusive. The Contractor shall bear the sole responsibility for taking all appropriate actions necessary to prevent accidents and injuries to individuals at the worksite. The following checked activities have been identified by the Government as potential safety hazards.
- ☒ Tree falling.
 - ☒ Fall hazard from work heights exceeding six feet.
 - ☒ Traffic control on high-volume and/or high-speed and/or limited visibility roads.
 - ☒ Travel on decommissioned roads, i.e. roads with waterbars and other barriers
 - ☒ Heavy equipment operation.
 - ☐ Tree climbing and/or tower climbing.
 - ☒ Fire hazards.
 - ☒ Hazardous materials handling.
 - ☐ Electrical hazard.
 - ☒ Hydraulic and/or pneumatic and/or other high pressure hazards.
 - ☐ Mechanical hazards such as pulleys, springs, etc.
 - ☒ Crossing streams-footing, fast water
 - ☒ Carrying heavy loads over steep ground
 - ☒ Other: uneven ground conditions

4.6 Fire Protection & Suppression

- 4.6.1 The Contractor shall preserve and protect all structures, equipment, and vegetation (such as trees, shrubs, and grass) on or adjacent to the work site, which are not to be removed and which do not unreasonably interfere with the work required under this contract. The Contractor shall only remove trees when specifically authorized to do so, and shall avoid damaging vegetation that will remain in place. If any limbs or branches of trees are broken during contract performance, or by the careless operation of equipment, or by workmen, the Contractor shall trim those limbs or branches with a clean cut and paint the cut with a tree-pruning compound as directed by the Contracting Officer.
- 4.6.2 The Contractor shall protect from damage all existing improvements and utilities (1) at or near the work site, and (2) on adjacent property of a third party, the locations of which are made known to or should be known by the Contractor. The Contractor shall repair any damage to those facilities, including those that are the property of a third party, resulting from failure to comply with the requirements of this contract or failure to exercise reasonable care in performing the work. If the Contractor fails or refuses to repair the damage promptly, the Contracting Officer may have the necessary work performed and charge the cost to the Contractor.
- 4.6.3 The Contractor shall immediately extinguish all fires on the work site other than those fires in use as a part of the work.
- 4.6.4 The Contractor may be held liable for all damages and for all costs incurred by the Government for labor, subsistence, equipment, supplies and transportation deemed necessary to control or suppress a fire set or caused by the Contractor or the Contractor's agents or employees.
- 4.6.5 The Contractor shall immediately notify the Government of any fires sighted on or in the vicinity of the work site.

4.7 — Use of Biobased Products

- ~~4.7.1 The Contractor shall utilize products and material made from biobased materials to the maximum extent possible without jeopardizing the intended end use or detracting from the overall quality delivered of the end user. All supplies and materials shall be of a type and quality that conform to applicable Federal Specifications and standards. All supplies and materials to be used in the performance of work described herein are subject to the approval of the Contracting Officer's Representative.~~
- ~~4.7.2 The following is an example list of products that may be used in this contract for which biobased products are available. The list is not all inclusive. It is desirable that vendors be able to supply the greatest number of biobased products listed meeting the health and environmental specifications.~~
- ~~a. Chain and Cable Lubricants~~
 - ~~b. Greases~~
 - ~~c. Penetrating Lubricants~~
- ~~4.7.3 The Contractor shall comply with the provision of FAR 52.223-1, Biobased Product Certification, and clause FAR 52.223-2, Affirmative Procurement of Biobased Products Under Service and Construction Contracts. The guide to minimum biobased content may be found at the following: <http://www.BioPreferred.gov/BioPreferred/faces/pages/ProductCategories.xhtml>.~~

4.8 Personal Protective Equipment

- 4.8.1 Personal protective equipment, including personal protective equipment for eyes, face, head, and extremities shall be provided, used, and maintained in a sanitary and reliable condition wherever it is necessary by reason of hazards or processes encountered in a manner capable of causing injury or impairment in the function of any part of the body. The contractor will provide training to their employees in the safe operation and use of equipment being used. Defective or damaged personal protective equipment shall not be used.
- 4.8.2 The contractor shall provide, at no cost to the employee, to each employee who operates a chain saw, chain saw chaps and assure the chaps are worn during saw operations. These chaps must be approved by Underwriters Laboratory or meet Forest Service specification 6170-47. The chaps shall cover the full length of the thigh to the top of the boot on each leg and be washed or replaced if they have any evidence of damage or heavily soiled with oil or lubricants.

- 4.8.3 The contractor shall assure that each employee wears foot protection that provides adequate traction and ankle support and must meet OAR 437-007-1320. Employees operating chain saws shall wear foot protection that is constructed with cut-resistant material which will protect the employee against contact with a running chain saw.
- 4.8.4 The contractor shall provide, at no cost to the employee, and assure that each employee who works in an area where there is potential for head injury from falling objects or flying objects wears a hard hat that meets the minimum requirements of American National Standards Institute (ANSI) standard Z89.1-1977 and meets the NFPA 1977 (1998 edition) standard.
- 4.8.5 The contractor shall provide, at no cost to the employee, eye protection where there is potential for eye injury due to flying objects. This eye protection must meet the minimum requirements of ANSI standard Z87.1-2003.
- 4.8.6 The contractor shall provide, at no cost to the employee, hearing protection where there is a potential for hearing loss due to high intensity noise i.e., chain saw or pump operation.

Part 5

Specific Tasks, Deliverables, & Performance Standards

5.1 Fire Line Construction and Maintenance (Hand and Mechanical)

5.1.1 Performance Standards

Location - Unless otherwise designated, fire lines shall be located adjacent to the unit boundary, in locations affording the optimal holding capability and remain on agency property. The Government may choose to clearly mark the pre-burn and post-burn fire line location with colored plastic ribbon. The fire line shall be constructed to follow the flagged line as closely as possible. Variations will be permitted if unforeseen obstacles are found. Pacific Yew shall not be cut or damaged.

Clearing Limits (Hand) - Hand fire line shall be cleared to a minimum width of 10 feet and a height of 6 feet. The width shall be measured parallel with the ground (slope distance). The height shall be measured from the side of the line away from the unit. A strip at least 1.5 foot wide to a maximum of 3 feet wide, and centered within the cleared area shall be cleared to mineral soil. A strip less than 1.5 foot wide may be designated by the COR on some units.

Material to be Cleared - Within the 10 foot lines, the following material shall be cut and removed:

- a. Ferns, shrubs and other vegetation. Cut to within 18 inches of ground level or as close as possible without damaging tools.
- b. Cut live and dead trees at ground level or as close as possible without damaging tools. No trees larger than 8 inches DBH shall be cut unless approved by the COR. The fire line shall be located to avoid larger green trees.
- c. Limbs extending within the fire line shall be cut close to the tree if the point of cutting can be reached from the ground (about 6 feet from the ground). Limbs shall be cut when they enter the fire line clearing limits if they cannot be cut at the tree. Limbs cut close to the tree need not be cut flush but "spike" limbs will not be allowed.
- d. Slash less than 10 inches diameter and litter shall be removed from the 10-foot (hand line) and 6 ft height (hand line) and fire line clearing strip. Natural ground duff need not be removed except from within the 3-foot strip on the fire line work area.
- e. A 3-foot section shall be removed from logs greater than 10 inches diameter located across the fire line for hand line. A 10-foot section shall be removed from logs located across the fire line for mechanical line.

Disposal of Cleared Material - Material cut from within the fire line shall be placed on the unit side (inside) of the fire line and scattered. Soil berms and piles will not be permitted on top of flammable material. Log sections may be rolled downhill and away from the unit provided they are left outside the fire line.

Snags and High Stumps - Snags or high stumps may be left next to the fire line when designated or approved by the Government.

Side Slopes (Hand Line only) - On side slopes that are steeper than 30 percent, the 3-foot wide strip shall be cup trenched sufficiently to catch rolling material 6 inches or less in diameter.

Water Bars - Water bars shall be constructed in all fire lines at the time of initial construction. The water bar shall consist of a diagonal ditch across the three-foot wide mineral soil portion of the fire line, but not in excess of the following guidelines. The water bar shall be approximately 6 inches to 10 inches deep and approximately 5 feet long. Unless otherwise directed, drainage shall allow rolling material and drainage into burn unit.

Percent of Slopes: 00% - 09% - None Required
 10% - 29% - 1 Water Bar Every 300'
 30% - 59% - 1 Water Bar Every 150'
 60% + - 1 Water Bar Every 100'

5.1.2 Performance Threshold - 95% of work inspected must meet all performance standards.

5.1.3 Method of Government Surveillance - Inspections will be made by the Government using a visual examination of the constructed fire line and clearing areas for compliance with all terms and specifications. If the work does not meet contract requirements, the Government will identify existing deficiencies in the fire line construction/maintenance and clearing. The Contractor shall re-work unsatisfactory performance within seven (7) calendar days of the COR notice of non-compliance.

5.1.4 Incentives & Remedies - The COR shall issue a notice of noncompliance for unacceptable performance, which may require the contractor to submit a corrective action plan. The Government shall allow one rework per inspection. The Contractor shall not be paid for full compliance if the rework is still unacceptable, and those areas may be terminated for cause. Reoccurring discrepancies are considered two consecutive reworks or four total reworks under a task order. Uncorrected or reoccurring discrepancies may lead to a Termination for Cause.

5.2 Fuels Pullback

5.2.1 Performance Standards

Trees/snags to be treated - Perform fuels pullback on leave trees and snags as designated by the task order.

Clearing - Each tree/snap designated for pullback shall be cleared around the tree/snap to the following: All surface fuels from the bole of the tree out to the dripline plus 1-foot wide area; aerial fuels from a 2-foot wide area, 6 feet in height. Material greater than 3" diameter within the clearing zone shall be rolled at least 4 feet from the bole. Duff and litter may be removed such that the depth is 3 inches or less. Care shall be taken to maintain the lower duff layer as damage to sub-surface roots could occur. Clearing shall include removing ladder fuels 6 feet up the bole of the tree/snap. This may require some pruning or cutting.

Removed fuels - Scatter all removed fuels and avoid concentrating the fuel. On sloping ground, fuel shall be scattered uphill or sidehill from the tree/snap. No removed fuel shall be below the tree/snap on a slope. On flat ground, any direction is acceptable.

5.2.2 Performance Threshold - 100% of work inspected must meet all performance standards.

5.2.3 Method of Government Surveillance - Inspections will be made by the Government using a visual examination of the fuels pullback areas for compliance with all terms and specifications. If the work does not meet contract requirements, the Government will identify existing deficiencies in the fuels pullback. The Contractor shall re-work unsatisfactory performance within seven (7) calendar days of the COR notice of non-compliance.

5.2.4 Incentives & Remedies - The COR shall issue a notice of noncompliance for unacceptable performance, which may require the contractor to submit a corrective action plan. The Government shall allow one rework per inspection. The Contractor shall not be paid for full compliance if the rework is still unacceptable, and those areas may be terminated for cause. Reoccurring

discrepancies under this contract are considered two consecutive reworks or four reworks under this task. Uncorrected or reoccurring discrepancies may lead to a Termination for Cause.

5.3 Prescribed Burn and Mop-Up Broadcast and Understory Burn:

The prescribed burning season for Oregon is generally between late September and June. Major control problems can occur during periods of frontal passage and strong wind conditions. Close attention to weather forecasts and securing and patrolling of previously burned units is common practice to prevent escaped fires.

5.3.1 Performance Standards

All prescribed fire operations shall be initiated only when a Prescribed Fire Plan has been approved and signed by the prescribed fire plan preparer, Fire Management Officer, Technical Reviewer, and Agency Administrator. All elements of the plan shall be followed unless a deviation has been approved in advance by the COR. The Contractor shall conduct a pre-burn crew briefing, as prepared in the Plan.

During ignition operations, the Contractor's crew supervisor shall maintain contact with the Government representative through mutually agreed upon communications system at all times.

Conduct holding operations in accordance with the prescribed fire plan. Relocation of personnel and equipment may be required as ignition and burnout progresses. The Contractor's crew supervisor shall recognize the need for and make such relocations, dependent upon on-site weather and fire conditions.

Extinguish any fire outside the fire line of the unit, or unit boundary, and promptly report this to the COR at the site. A fire line shall be constructed completely around any fire, slop-over, or spot fire outside the primary unit boundaries. The minimum shall be a fire line scraped to mineral soil 18 inches in width with all overhanging combustible material cleared for three feet on either side, and six feet overhead.

Do not fell any reserved trees or snags which may have fire in them without approval of the COR.

Mop-up shall be performed in accordance with 5.8, Standard Mop-Up and Patrol.

Restoration - After ignition and mop-up, all water bars shall be restored to a properly functioning condition.

5.3.2 Performance Threshold - 100% Compliance with the Prescribed Fire Plan and Daily Shift Plan will be required unless concurrence is obtained from the COR prior to deviating from the plan.

5.3.3 Method of Surveillance - The COR will be on site during burning operations (ignition and holding). The Contractor's activity will be monitored throughout the operation for compliance with the prescribed fire plan, daily shift plan, and that objectives for resources, prescribed fire, and smoke management are being met.

100% inspection of the designated mop-up areas will be made by the Government either visually and/or with infrared-scan equipment to ensure that all burning material has been detected. The Contractor shall extinguish any burning material detected before final acceptance is made. Compliance with the Prescribed Fire Plan and Daily Shift Plan will be required unless concurrence is obtained from the COR prior to deviating from the plan.

The Government will inspect patrol and mop-up operations to determine compliance with the required mop-up standards for compliance with all specifications in 5.8.

5.3.4 Incentives & Remedies - A notice of noncompliance or a notice to stop work will be issued for all deviations from the Prescribed Fire Plan not previously approved by the COR.

5.5 Prescribed Fire and Mop-Up: Hand Pile Burn

The burning season for hand piles for Oregon is generally between late October and December. However, conditions permitting burning may occur at any time from early October through June. Major control problems can occur during a period of frontal passage and strong wind conditions. Close attention to weather forecasts and securing and patrolling of previously burned units is common practice to eliminate any fire spread from burned piles or escaped burns outside unit boundaries.

5.5.1 Performance Standards

All prescribed fire operations shall be initiated only when a Prescribed Fire Plan has been approved and signed by the prescribed fire plan preparer, Fire Management Officer, Technical Reviewer, and Agency Administrator. All elements of the plan shall be followed unless a deviation has been approved in advance by the COR.

During ignition operations, the Contractor's crew supervisor shall maintain contact at all times with the Government representative through mutually-agreed-upon communications system.

Holding typically is not necessary when piles are burned during winter conditions. Conduct holding operations as necessary in accordance with the prescribed fire plan. Relocation of personnel and equipment may be required as ignition and burnout progress. The Contractor's crew supervisor shall recognize the need for and make such relocations, dependent upon on-site weather and fire conditions.

Extinguish any fire outside the fire line of the unit, or unit boundary, and promptly report this to the COR at the site. A fire line shall be constructed completely around fire inside the unit actively spreading away from piles, slop-over, and/or spot fires outside the primary unit boundaries. The minimum shall be a fire line scraped to mineral soil 18 inches in width with all overhanging combustible material cleared for 3 feet on either side, and 6 feet overhead.

Do not fell any reserved trees which may have fire in them without written approval of the COR.

Mop-up shall be performed in accordance with 5.8, Standard Mop-Up and Patrol.

5.5.2 Performance Threshold - A minimum of 95% of all piles shall be ignited. Stoke each pile until at least 90 percent of each pile is consumed. Units with a high tree cover and pile density shall be burned in stages to reduce crown scorch.

5.5.3 Method of Surveillance - The COR will be on site during burning operations (ignition and holding). The Contractor's activity will be monitored throughout the operation for compliance with the prescribed fire plan, daily shift plan, and that objectives for resources, prescribed fire, and smoke management are being met.

100% inspection of the designated mop-up areas will be made by the Government either visually and/or with infrared-scan equipment to ensure that all burning material has been detected. The Contractor shall extinguish any burning material detected before final acceptance is made. Compliance with the Prescribed Fire Plan and Daily Shift Plan will be required unless concurrence is obtained from the COR prior to deviating from the plan.

The Government will inspect patrol and mop-up operations to determine compliance with the required mop-up standards for compliance with all specifications in 5.8.

5.5.4 Incentives & Remedies - A notice of noncompliance or a notice to stop work will be issued for all deviations from the Prescribed Fire Plan not previously approved by the COR.

5.7 Prescribed Fire Modules

Prescribed Fire Modules may be ordered by the Government for unit(s) when the Government is conducting prescribed fire and needs assistance in one or more prescribed fire operations. These operations include the following: ignition assistance, holding assistance, burned unit patrol, and mop-up of burned unit(s). Prescribed Fire Modules can be ordered for any one of the above operations, a combination, or all the operations.

Work assignments will average 8 to 12 hours per day. Individual assignments may range from as few as 3 hours and shall not exceed 16 hours per day. All water delivery vehicles shall be full of water prior to arrival to the work site.

- a. Prescribed Fire Module – Engine & 3-Person Crew Module - Consisting of one Engine, minimum Type VI (250 gallons); 1 engine boss and Two Person Crew consisting of two crew members, total of 3 people.

5.7.1 Performance Standards

Should the Contractor (1) fail to provide the ordered services; (2) quit work early or leave work before being released, or (3) fail to complete the project as specified in the Daily Shift Plan Objectives, the task order may be considered in default. Payment will be made for work completed.

Extended Hours - subitems with a daily rate unit of issue, for which services are provided beyond 12 hours, but not to exceed 24 hours in a day, will be paid an additional daily rate. For example, if the Contractor satisfactorily works 16 hours in one day, then they may invoice for a quantity of two days.

Start-Work Procedures - The COR will notify the Contractor via telephone or direct communications of the Level of Difficulty Modules required and the type of prescribed fire operation to be performed. The Contractor shall notify the COR of any concerns or questions regarding understanding of, or Contractor's ability to successfully achieve, the Prescribed Fire Plan or Module(s) Daily Shift Plan Objectives, Standards, and Assignments. This notification shall occur at the time of ordering, briefing, or anytime during the shift. Depending on the prescribed fire operation, a briefing will be held via telephone or direct communication. The briefing can be held on or in the vicinity of the work site, at the agency office, or other agreed-upon location. The Contractor shall be required to respond and arrive at the agreed upon location at a specified time for the briefing. At the briefing, the Government will provide the Contractor with the following:

- a. See items listed in Section 3.1a and 3.1b.
- b. Briefing on Prescribed Fire Plan and Objectives, Standards, and Assignments for ignition and holding assistance.
- c. Module(s) Daily Shift Plan Objectives, Standards, and Assignments for patrol and mop-up assistance.
- d. Communications instructions and chain of command.
- e. Identification of any priorities.
- f. Safety concerns and issues.
- g. Target Completion Time, anticipated length of shift.

5.7.2 Performance Standards

The following are the descriptions of requirements for personnel, transportation, engines, water tenders, and equipment for each of the Levels of Difficulty Modules.

- a. Type VI Engine, Minimum of 250 Gallons (Engine Boss with 2 crewmembers)
 1. Engine - Self-propelled unit equipped with a minimum of 250-gallon water tank and pump capable of pumping a minimum 30 gallons per minute at 150 psi through 1/4-inch nozzle at the end of a 50-foot length of 1 inch hose and equipped with minimum of 200 feet of 1-inch rubber hose or cotton/synthetic lined hose, on a live reel, and additional hose to reach a total of 1,500 feet. Additional hose can be 1-inch or 1 and one-half inch cotton/synthetic jacket rubber lined hose, appropriate fittings, and at least 2 nozzles. Operator and assistant - two people total.
 2. Equipment:
 - Pulaski – 2
 - Shovel – 1
 - Fedcos or equivalent backpack water pump – 1
 - Chainsaw – 1

Ignition Assistance: This prescribed fire operation involves the direct igniting of fuels, usually with a drip torch. Ignition assistance by the Contractor shall be from crew members. When the Government is ordering Prescribed Fire Modules to assist in ignition operations, the Government will provide Prescribed Fire Burn Boss, Firing Boss, Holding Specialist, drip torches

and ignition fuel. The Government may also provide crew members. The Contractor's crew supervisor shall maintain contact at all times with the Firing Boss through mutually agreed upon communications system.

Holding Assistance: This prescribed fire operation can involve any of the Prescribed Fire Modules. Holding operations shall be conducted in accordance with the prescribed fire plan. Relocation of personnel and equipment may be required as ignition and burnout progress. The Contractor's crew supervisor shall recognize the need for and make such relocations, dependent upon on-site weather and fire conditions.

Extinguish any fire outside the fire line of the unit, or unit boundary, and promptly report this to the COR at the site. A fire line shall be constructed completely around any fire, slopover, or spot fire outside the primary unit boundary. The minimum shall be a fire line scraped to mineral soil 18 inches in width with all overhanging material cleared for three feet on either side, and six feet overhead.

Do not fell any reserved trees or snags which may have fire in them without approval from the COR.

Mop-up shall be performed in accordance with 5.8, Standard Mop-Up and Patrol.

Patrol Assistance: The prescribed fire operation can involve Crew Modules or Engine Modules or a combination of both. Patrol includes checking previously burned units for visible smokes or hot spots and the areas surrounding the previously burned units for spot fires or slopovers and taking mop-up actions as defined in the Shift Plan for that day. The Contractor's crew supervisor shall maintain contact at all times with the Government representative through a mutually agreed upon communications system. Patrol shall be conducted in accordance with Section 5.8.

Mop-Up Assistance: This prescribed fire operation can involve any of the Prescribed Fire Modules. Mop-up operations shall be conducted according to Section 5.8. The Contractor and the Government representative shall review the plan daily to ensure validity of plan, adequacy of assigned resources and timely completion of work.

5.7.2 Performance Threshold

Performance standards will be measured in accordance with Performance Thresholds for 5.3, 5.5, or 5.6 depending on the assigned duties of the module.

Acceptance of ignitions and holding assistance will be made by the COR, if the Contractor is in compliance with the specifications for satisfactory ignition and holding.

Acceptance for mop-up or patrol will be based upon the results of an infra-red scan revealing no burning material, if requested by the Contractor or the Government, or by visual inspection by the Government.

5.7.3 Method of Surveillance

The COR will be on site during burning operations (ignition and holding). The Contractor's activity will be monitored throughout the operation for compliance with the prescribed fire plan, daily shift plan, and that objectives for resources, prescribed fire, and smoke management are being met.

100% inspection of the designated mop-up areas will be made by the Government either visually and/or with infrared-scan equipment to ensure that all burning material has been detected. The Contractor shall extinguish any burning material detected before final acceptance is made. Compliance with the Prescribed Fire Plan and Daily Shift Plan will be required unless concurrence is obtained from the COR prior to deviating from the plan.

The Government will inspect patrol and mop-up operations to determine compliance with the required mop-up standards for compliance with all specifications in 5.8.

5.7.4 Incentives & Remedies - Any action will be in accordance with Incentives & Remedies identified for 5.3, 5.5, or 5.6 depending on the assigned duties of the module.

5.8 Standard Mop-Up and Patrol

The Contractor shall complete mop-up and patrol of unit(s) to the extent required for in this section and sections 5.3, 5.5, and 5.6 to meet the mop-up objectives of (1) the prevention of fire escape outside the primary unit boundaries, and (2) prevention of reburn within unit boundaries. Patrol and mop-up shall begin immediately following completion of ignition on any portion or whole of each prescribed burn unit.

If the weather conditions, forecasts, fuel conditions change, and/or smoke management concerns occur during mop-up and patrol operations to a point where the standard mop-up and patrol may no longer meet mop-up or smoke management objectives, then the Government may, at its option, order additional mop-up resources under section 5.7, Prescribed Fire Modules as needed and determined by the Government.

5.8.1 Performance Standards

Completely extinguish all burning material within the designated mop-up area.

Do not fell any reserved trees which may have fire in them without written approval of the COR.

The Contractor may use COR-approved wetting agents, retardants, foam, or suppressants during mop-up and ignition operations. The Contractor shall assure that wetting agents, retardants, foam, or suppressants do not leak or spread into streams, water sources or standing water. Root wads (uprooted stumps with roots attached) shall be thoroughly extinguished (dug around and rotten or loose wood scraped off). Fireline berms shall be thoroughly extinguished.

Logs and chunks with a minimum size of 12 inches diameter x 4 feet in length up to a maximum of 20 inches diameter x 8 feet in length on slopes greater than 50% shall be secured in a manner that prevents this debris from rolling.

Project Area Reburn - Should a reburn occur during the mop-up operation, the Contractor shall suppress the fire and notify the COR immediately. The cost of reworking the area to contract requirements shall be borne by the Contractor.

Mop-up contingencies are established and will be initiated by the COR for the following situations:

- a. If a Fire Weather Watch or Red-Flag Warning is issued or predicted by the National Weather Service for extreme fire weather conditions; or if smoke emissions from the burn unit during mop-up are creating air quality impacts to population centers, or other smoke sensitive areas, the Contractor may be required to complete mop-up within a 24-hour period. If satisfactory progress is not made, or a mop-up plan is not provided that ensures completion within the 24-hour period, the Government, when determined necessary, may immediately assume control of the project area and provide personnel and/or equipment to complete the work. In this event, the Contractor will be liable for the cost to the Government of performing mop-up.
- b. If prescribed fire is declared a wildland fire per direction in the Prescribed Burn Plan, the Government will immediately assume control of the project area.

When providing services under section 5.3, Mop-Up and Patrol for Broadcast and Understory Burn, the Contractor shall complete patrol and mop-up to meet the objectives described in 5.8. Complete 100 percent mop-up of all spot fires and slopovers outside the unit boundary and as directed by the COR inside of unit boundary.

Patrol shall include the visual inspecting of all sites where burning was performed and the surrounding area and checking for and mop-up of burning material that threatens the achievement of mop-up objectives or the mop-up standards for each unit's Daily Shift Plan. Patrol shall also include taking actions to prevent fire escape outside the unit boundary and/or to prevent reburn within the unit boundary. Immediately take actions to fire line, mop up, and identify all slopovers or spot fires. If the Contractor is unable to contain or control slopovers or spot fires with patrol resources, promptly, within 30 minutes after discovery, notify the Government of the situation and continue to safely take action to contain or control fire.

5.8.2 Performance Threshold - The Contractor shall extinguish any burning material detected before final acceptance is made.

5.8.3 Method of Surveillance - 100% inspection of the designated mop-up areas will be made by the Government either visually and/or with infrared-scan equipment to ensure that all burning material has been detected and extinguished.

5.9 Payment

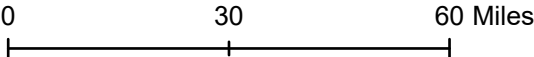
The Contractor may submit one invoice for completed satisfactory work every two weeks. Invoices shall be submitted in the Invoice Processing Platform, which can be accessed at www.ipp.gov.



Legend

- Field Office
- WEW Broadcast Burning

No warranty is made by the Bureau of Land Management as to the accuracy, reliability, or completeness of these data for individual or aggregate use with other data. Original data were compiled from various sources and may be updated without notification.



REGISTER OF WAGE DETERMINATIONS UNDER
THE SERVICE CONTRACT ACT
By direction of the Secretary of Labor

U.S. DEPARTMENT OF LABOR
EMPLOYMENT STANDARDS ADMINISTRATION
WAGE AND HOUR DIVISION
WASHINGTON D.C. 20210

Daniel W. Simms Division of
Director Wage Determinations

Wage Determination No.: 1977-0079
Revision No.: 82
Date Of Last Revision: 4/11/2026

Employed on contract(s) for Forestry and Logging Services.

State: Oregon

Area: Oregon Counties of Baker, Benton, Clackamas, Clatsop,
Columbia, Coos, Crook, Curry, Deschutes,
Douglas, Gilliam, Grant, Harney, Hood
River, Jackson, Jefferson, Josephine,
Klamath, Lake, Lane, Lincoln, Linn,
Malheur, Marion, Morrow, Multnomah,
Polk, Sherman, Tillamook, Umatilla,
Union, Wallowa, Wasco, Washington,
Wheeler and Yamhill

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
08010 - Brush/Precommercial Thinner		20.04
08040 - Choker Setter		20.18
08070 - Faller/Bucker		35.61
08100 - Fire Lookout		19.38
08130 - Forestry Equipment Operator		23.41
08160 - Forestry/Logging Heavy Equipment Operator		23.41
08190 - Forestry Technician		25.80

08200 - Forestry Truck Driver	20.49
08250 - General Forestry Laborer	16.13
08280 - Nursery Specialist	26.84
08310 - Slash Piler/Burner	12.91
08340 - Tree Climber	12.91
08370 - Tree Planter	18.16
08400 - Tree Planter, Mechanical	18.16

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor; and 3 weeks after 10 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

Solicitation No. 140L372600050

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination. Such conformed classes of employees shall be paid the monetary wages and furnished the fringe benefits as are determined (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be retroactive to the commencement date of the contract (See 29 CFR 4.6(b)(2)(iv)(C)(vi)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed

Solicitation No. 140L3726Q00050
occupation(s) and computes a proposed rate(s).

2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.

3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the Wage and Hour Division, U.S. Department of Labor, for review (See 29 CFR 4.6(b)(2)(ii)).

4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour decision to the contractor.

6) The contractor informs the affected employees.

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" (the Directory) should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination.

"

Clauses Incorporated by Reference

52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements JAN 2017

52.204-10 Reporting Executive Compensation and First-Tier Subcontract Awards JUN 2020

52.204-13 System for Award Management Maintenance OCT 2018

52.204-14 Service Contract Reporting Requirements OCT 2016

52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment JAN 2025

52.209-10 Prohibition on Contracting with Inverted Domestic Corporations NOV 2015

52.212-1 Instructions to Offerors—Commercial Products and Commercial Services SEP 2023

52.212-4 Contract Terms and Conditions—Commercial Products and Commercial Services NOV 2023

52.219-6 Notice of Total Small Business Set-Aside NOV 2020

52.219-28 Post-Award Small Business Program Rerepresentation JAN 2025

52.222-3 Convict Labor June 2003

52.222-36 Equal Opportunity for Workers with Disabilities JUN 2020

52.222-41 Service Contract Labor Standards AUG 2018

52.222-42 Statement of Equivalent Rates for Federal Hires MAY 2014

52.222-50 Combating Trafficking in Persons OCT 2025

52.222-55 Minimum Wages for Contractor Workers Under Executive Order 14026 JAN 2022

52.222-62 Paid Sick Leave Under Executive Order 13706 JAN 2022

52.222-90 Addressing DEI Discrimination by Federal Contractors

52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving MAY 2024

52.227-1 Authorization and Consent JUN 2020

52.232-33 Payment by Electronic Funds Transfer—System for Award Management OCT 2018

52.232-39 Unenforceability of Unauthorized Obligations JUN 2013

52.232-40 Providing Accelerated Payments to Small Business Subcontractors MAR 2023

52.233-3 Protest after Award AUG 1996

52.233-4 Applicable Law for Breach of Contract Claim OCT 2004

52.240-91 Security Prohibitions and Exclusions DEC 2025

52.240-93 Basic Safeguarding of Covered Contractor Information Systems DEC 2025

1452.280-2 Notice of Indian economic enterprise set-aside JUL 2013

Clauses Incorporated by Full Text

1452.201-70 AUTHORITIES AND DELEGATIONS SEP 2011

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.

(b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.

(c) The COR is not authorized to perform, formally or informally, any of the following actions:

(1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;

(2) Waive or agree to modification of the delivery schedule;

(3) Make any final decision on any contract matter subject to the Disputes Clause;

(4) Terminate, for any reason, the Contractor's right to proceed;

(5) Obligate in any way, the payment of money by the Government.

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph

(d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract

action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of Clause)

**DOI-AAAP-0028 ELECTRONIC INVOICING AND PAYMENT REQUIREMENTS-
INVOICE PROCESSING PLATFORM (IPP) (FEB 2021)**

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

'Payment request' means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is:

<https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

Contractors Invoice

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Local Clause)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

Federal Acquisition Regulation: <https://www.acquisition.gov/far>

Department of the Interior Acquisition Regulation: <https://www.acquisition.gov/diar>

(End of clause)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES NOV 2020

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Department of the Interior Acquisition Regulation (48 CFR Chapter 14) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

Provisions Incorporated by Reference

52.204-7 System for Award Management NOV 2024

52.240-90 Security Prohibitions and Exclusions Representations and Certifications DEC 2025

Provisions Incorporated by Full Text

52.212-2 Evaluation—Commercial Products and Commercial Services NOV 2021

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

Basis for Award (Comparative Evaluation)

1. General:

The Government will award a purchase order resulting from this solicitation to the responsible quoter whose quote is most advantageous to the Government, price and evaluation factors identified below. This acquisition is being conducted under the Acquisition of Commercial Products and Commercial Services of FAR Part 12.

2. Evaluation Process:

In accordance with FAR 12.203(c)(2) ([FAR Overhaul - Part 12 | Acquisition.GOV](#)) the Government will perform a comparative evaluation of quotes. A comparative evaluation is defined as the act of comparing one quote to another in a side-by-side fashion.

- No Formal Scoring: The Government will not use formal evaluation plans, precise weighting, or adjectival scoring (e.g., "Excellent" or "Blue").
- Direct Comparison: IAW FAR 12.203(b), Quotes will be compared against one another to determine which provides the best value. The Government will use their professional business judgment to determine if a quote's technical superiority or more favorable terms (e.g., faster delivery, longer warranty) justifies a higher price. However, the Government may first perform a price analysis. If the lowest-priced quote provides the best value, the Government may award to that quoter without further comparison to other quotes.

3. Evaluation Factors:

The following factors will be used to evaluate quotes:

1. Technical Capability: Ability to meet the specifications in the Statement of Work. (narrative response of no longer than 5 pages).

(A) Technical approach narrative must demonstrate the offeror's understanding of the project requirements, the scope of work, and the contract documents. Identify and address the specific needs and unique requirements for the scope, location, and schedule of this project.

(B) Demonstrate understanding of how to organize, staff, and manage the contract, as well as

the means and methods that will be used to accomplish the contract requirements.

(C) Demonstrate an understanding of project requirements for safety, sustainability, energy efficiency and risk management.

(D) Provide a schedule to show how work described in the SOW will be completed within the Period of Performance.

2. Relevant Experience: Provide a list of at least two (2) jobs completed or ongoing, in the past five (5) years in which you acted as a Prime Contractor or Sub-Contractor responsible for providing similar/services. Each job description must contain the following information: •The name of job •The job start and end dates •A brief description of services provided and the location/size of the job •The owner of job •The owner's Contact information •The total dollar value of the job.

3. Key Personnel: Key Personnel as noted in Paragraph 1.7 of the PWS.

4. Price: Total evaluated price.

(b) *Options.* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference FEB 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Federal Acquisition Regulation: <https://www.acquisition.gov/far>

Department of the Interior Acquisition Regulation: <https://www.acquisition.gov/diar>

(End of provision)

52.252-5 Authorized Deviations in Provisions NOV 2020

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Department of the Interior Acquisition Regulation (48 CFR Chapter 14) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)